

PLJ 2019 Lahore (Note) 74
[Multan Bench, Multan]

Present: MASUD ABID NAQVI, J.

MUHAMMAD YOUSAF--Appellant

versus

MUHAMMAD RAMZAN--Respondent

R.F.A. No. 202 of 2016, heard on 8.12.2016.

Civil Procedure Code, 1908 (V of 1908)--

---O. 37--Purchasing of pesticides--Issuance of cheque--Dishonoured--Filing of suit--Suit was decreed--Challenge to--That defendant/appellant has not specifically denied execution of cheque or his signatures on cheque and mutual business between parties in his application for leave to appear and defend suit but only pleaded that he issued cheque as guarantee and that cheque was blank--It is admitted by DW.2 and DW.3 in cross examination that defendant/ appellant had duly executed cheque in dispute of his personal account for sake of return of money. [Para 3] A & B

Negotiable Instruments Act, 1881 (XXVI of 1881)--

---S. 118--Presumption of--Negotiable instrument was made for consideration--It is well settled law that under Section 118 of Negotiable Instruments Act, 1881, there is an initial presumption that negotiable instrument is made, drawn, accepted or endorsed for consideration and in a case to contrary onus is on person who is denying consideration to prove same. [Para 3] C

2007 CLD 1542, *ref.*

Burden of Proof--

---It is crystal clear that defendant/ appellant has failed to substantiate his claim that consideration of cheque has not been received by him and he will not be relieved from discharging above burden of proof--Appellant/defendant has miserably failed to establish/substantiate/prove his claim(s)--Appeal was dismissed. [Para 4] D & E

Rana A.D. Kamran, Advocate for Appellant.

Mr. Qaiser Amir Khan, Advocate for Respondent.

Date of hearing: 8.12.2016

JUDGMENT

Masud Abid Naqvi, J.--Precisely stated facts of the suit under Order XXXVII, CPC as enumerated in the plaint are that appellant/defendant purchased pesticides worth Rs.5,00,000/- from the plaintiff/respondent and issued a bank Cheque No. 5083555 for 01.01.2013. When the plaintiff presented the cheque in the bank and the same was dishonoured on 06.02.2013. The appellant/defendant resisted the suit by way of filing an application for leave to appear & defend the suit and by raising certain legal as well as factual objections. Issues were framed and after recording the evidence of the parties, the suit was decreed *vide* judgment & decree dated 22.06.2016. Feeling aggrieved, the appellant/defendant has filed instant appeal against the judgment & decree dated 22.06.2016.

2. I have heard the arguments of learned counsel for the parties who reiterated their respective arguments and perused the available record as well as have minutely gone through the impugned judgment and decree.

3. To prove his case, the plaintiff/respondent appeared and deposed as PW-1 and produced Naveed Ahmad and Ghulam Fareed as PW-2, PW-3. All the witnesses fully supported the contents of the plaint and the plaintiff's version. The plaintiff/respondent exhibited the cheque as Exh.P-1 and memo. slip as Exh.P-2. It is

proper to mention here that the defendant/appellant has not specifically denied the execution of cheque or his signatures on the cheque and mutual business between the parties in his application for leave to appear and defend the suit but only pleaded that he issued the cheque as guarantee and that the cheque was blank. The appellant/defendant alleged that in fact he purchased pesticides for Rs.2,60,000/- which amount he had paid to plaintiff but in this regard he did not bring on record any documentary proof. It is proper to mention here that it is admitted by the DW.2 and DW.3 in cross-examination that defendant/appellant had duly executed the cheque in dispute of his personal account for the sake of return of the money. It is well settled law that under Section 118 of the Negotiable Instruments Act, 1881, there is an initial presumption that the negotiable instrument is made, drawn, accepted or endorsed for consideration and in a case to contrary the onus is on the person who is denying the consideration to prove the same. The Honorable Supreme Court in a case reported as *Muhammad Azizur Rehman Vs Liaquat Ali* (2007 CLD 1542) had held as under:

“.....According to Section 118 of the Act, until the contrary is proved, the presumption shall be made that every negotiable instrument was made or drawn for consideration.....”

4. By scanning the contents of the pleadings, oral as well as documentary evidence, it is crystal clear that the defendant/appellant has failed to substantiate his claim that consideration of cheque has not been received by him and he will not be relieved from discharging the above burden of proof. Testing the case in hand, at the touchstone of the abovementioned settled law, I feel no hesitation in holding that the appellant/defendant has miserably failed to establish/ substantiate/prove his claim(s). In view of the foregoing discussion, this appeal is dismissed.

(M.M.R.) Appeal dismissed